COURSE TITLE	**LABOUR & INDUSTRIAL LAW**
COURSE CODE	**10FL1601**
COURSE CREDITS	**4**

Objective:

1. To acquaint the students of law with theoretical as well as practical knowledge of labour and industrial legislation.
2. To enable the students of law, to understand the importance of implementing (Compliance with Labour and Industrial Laws as its non-adherence attracts penal provisions and it also severely affects the reputation of the establishment.
3. To be familiar with the provisions of various labour laws relating to industrial relations, wages and social security and how there have been judicial precedents in this regard.

Course Outcomes: After completion of this course, student will be able to:

1. State / understand the philosophy of labour laws.
2. Explain occupational health, safety and working conditions. - analyze the need and significance of occupational health, safety and regulation of working conditions
3. Interpret various statutory provisions relating to Industrial Relations.
4. Compare provisions of the new industrial relation code (Code on Industrial Relations 2020 with the existing law.

Pre-requisite of course:N/A

Teaching and Examination Scheme

Theory Hours	Tutorial Hours	Practical Hours	ESE	IA	CSE	Viva	Term Work
3	1	0	50	30	20	0	0

Contents : Unit	Topics	Contact Hours
1	**Historical Perspectives on Labour law and Its growth and Development** Labour Laws, Colonial labour law and policy, Labour capital conflicts: exploitation of labour, profit motive, poor bargaining power, poor working conditions, Labour Laws: Concept, Origin, Objectives & Classification, Critical Appraisal of First and Second National labour Commission, International Labour Organisation and Indian Labour Legislation (International labour Standards), Constitutional Framework and Industrial Relations, Five-Year Plans and Labour Policy, Changing Dimensions of Industrial Relations (post covid)	7

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Contents : Unit	Topics	Contact Hours
2	**Occupational safety, health and working condition** Factories Act, 1948, Definitions - factory, manufacturing process, occupier' worker, hazardous process, etc., Provisions of the Factories Act relating to health, safety and welfare of workers - provisions relating to Hazardous process - provisions relating to working conditions of employment - Working hours, Weekly leave, Annual leave facility, Provisions relating to the regulation of employment of women, children and young persons., Obligations for the occupiers under the Factories Act, 1948, Comparison with the Code on Occupational Safety, health and Working condition.	12
3	**The Payment of Wages** Definitions - employed person, factory, industrial and other establishment, wages, etc., Authorized Deductions - Authorities - Inspectors and Payment of Wages Authority., Minimum Wages & Floor wage- components, Procedure for fixation and revision of minimum wage, fixation of floor wage, Payment of Wages, Payment of Bonus and Equal remuneration (Concept of same work of similar nature), Concept of Living wages, Administration of the Code - Central Advisory Board and State Advisory Boards, Adjudication - Payment of Dues, Claims and Audit, Enforcement of the Code (i) Inspector-Cum-Facilitator (ii) Offences and Penalties including Composition of offenses., Comparison with The Code on Wages, 2019	7
4	**Industrial Disputes** Definitions- Industry, Workman, Industrial Dispute, Appropriate Government etc., Definition of strike and lockout' Analysis of Judicial interpretations, Regulation U/Ss 22,23,10-A(4A), and 10 (3) Illegal strikes and lockouts, penalties., Regulation of job losses concerning the provisions of chapters V-A and VB of the ID Act, l947, Authorities/Industrial Dispute resolution machinery - Works Committee, Conciliation and Board of Conciliation - powers and Functions, court of Inquiry, Grievance settlement (redressal) Authority, Voluntary Arbitration, Compulsory Adjudication-Government's power of reference, Section l0 - Critical analysis concerning decided cases., Compulsory Adjudication- (Labour Court, Tribunal, and National Tribunal) Composition, Qualification, Jurisdiction, powers of adjudication authorities - Award and Settlement - Definition, Period of operation, binding nature, and Juridical Review of the award., Comparison with the code on Industrial Relation 2020.	12
5	**Law relating to Trade Union** Trade Union, Collective Bargaining, Trade Unions Act, 1926, The Industrial Employment (Standing Orders) Act, 1946, Comparison with the Code on Industrial Relation Code 2020.	7
Total Hours		**45**

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Suggested List of Experiments:

Contents : Unit	Topics	Contact Hours
1	**Issues related to Labour and industrial Law** Issues related to Labour and industrial Law	15
Total Hours		**15**

Textbook :

1 Industrial Relations and Labour Laws, Srivastava S.C., Delhi, Vikas, 2012

References:

1 A Study of Industrial Law, A Study of Industrial Law, GM Kothari, Wahdwa Publications, 2000

Suggested Theory Distribution:

The suggested theory distribution as per Bloom's taxonomy is as follows. This distribution serves as guidelines for teachers and students to achieve effective teaching-learning process

Distribution of Theory for course delivery					
Remember / Knowledge	**Understand**	**Apply**	**Analyze**	**Evaluate**	**Higher order Thinking / Creative**
10.00	10.00	30.00	20.00	10.00	10.00

Supplementary Resources:

1 Ministry of Labour & Employment (Government of India) https://labour.gov.in Official source for Labour Codes, notifications, policies Updates on wages, industrial relations, social security

2 e-Shram Portal https://eshram.gov.in Database and initiatives for unorganised workers Useful for understanding informal labour sector

3 International Labour Organization (ILO) https://www.ilo.org Global standards on labour rights Conventions, recommendations, and comparative material

4 PRS Legislative Research https://prsindia.org Simplified summaries of Labour Codes (2019–2020) Legislative analysis and policy briefs

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